

School: Birch Hill Primary **Date:** 21/09/2021

Report: Remote consultation

DPE: Arrienne Ditchburn **School member:** Jane Light

Consultation details

- DPE website/best practice including: adding staff and updates on the DPE website
- Review of previous actions and audits - what support is needed
- Compliance (documents) and checklists
- Review of training
- Information security - cyber essentials and NCSC training
- Electronic internal audit (making the rounds)
- Record of processing (RoP)
- Confirm future appointments and/or RoP session(s)
- Q and As

Priorities from the consultation are detailed below:

DPE website/best practice including staffing changes

Actions:

- Set up all staff on the DPE website: DPE dashboard>users>add staff, either manually or bulk import
- Ensure all breaches and requests are logged on the Knowledge Bank logs
- Set up a session with Kalina at DPE (client support) to understand the tools available and how to use them

Review of previous report(s) and outstanding actions

Actions:

- Physical security has been addressed and significant improvements have been made to protect personal data within the school
- Some staff meeting updates have been given to support awareness
- Very little training has been undertaken and no formal training has taken place for all staff. This must be prioritised as it presents a significant risk to the school for various reasons. More details on the recommendations are below
- Pigeonholes- these have not been moved following the previous recommendation. If moving them is not a practical solution, ensure that personal data is not placed in. Encourage staff to move to electronic means of communication and where necessary, hand deliver papers.
- The implementation of an auto lock on all devices requires further discussion with IT. Laptops do not currently automatically lock which needs to be completed.

Compliance checklist and documents

The compliance best practice area/checklist (<https://dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance>) can be used to manage progress, print off reports for Trustees/Governors and support consultants during visits/remote consultations.

Actions:

- Current policies are on a three-year review cycle. For data protection, it should be bi-annually and when significant changes take place, such as coronavirus
- Update the **Privacy Policy** to the latest DPE version. This version includes updates relating to coronavirus
- Adopt the latest **DPE Privacy Notices**. There are now separate Privacy Notices for: Workforce, General and Students and there is now a child friendly notice. In addition, update the documentation on the school website (available from the compliance best practice area).
- **Work away from school policy it is good practice to have one.** School to ascertain which staff work from home, what data they access and how data is handled, which will support risk management for working out of school (policy available from the compliance best practice area).
- There are outstanding compliance documents that require implementation and imbedding i.e. **SAR procedure and data breach procedure**. Do all staff understand your organisation's data breach procedure? Review the DPE consent guidance and consent forms; does data displayed around school and on the website correlate with your current documentation? Is there data still displayed of leavers?

The following documents should be adopted-

- a. Subject access request procedure
 - b. Data breach procedure
 - c. Work out of school policy
 - d. Information Classification
 - e. Photo and Video Guidelines
 - f. Clear desk policy
 - g. CCTV policy
 - h. Information security policy
 - i. Records Management policy
 - j. Freedom of Information policy
- **Publication scheme: The updated guidance can be obtained from:**
<https://dataprotection.education/news-top/news/83-best-practice-updates/182-model-publication-scheme-amendments-improvements-and-updates>

Updated publication schemes can be obtained from:

<https://kb.dataprotection.education/index.php/best-practice-library/best-practice/freedom-of-information>

Training

Actions:

- All staff must receive data protection training. This can be done on the Knowledge Bank where you can find the following modules-
 - GDPR: Data Protection 101- 2 modules, approximately 1hour
 - GDPR Refresh- 20-minute module
 - Stay Safe Online- 20-minute module

- Working from Home- 20-minute module
- Risk Management- 20-minute module
- Various bite-size nugget training- 5-10 minutes
 - Data Breaches
 - Subject Access Requests
 - Clear Desk
 - Physical Security
 - Password Security

Information security - cyber essentials and NCST training

Actions:

- As there have been some security concerns within the sector ask your IT provider to complete the cyber essentials questionnaire: <https://dataprotection.education/best-practice-library/documents/information-technology-security>
- Consider staff completing the DPE NCSC stay safe online training.

Electronic internal audit (making the rounds)

Actions:

- The school has the option to complete their own end of day walk and report findings back to staff (raising awareness)
- School to conduct a walkaround prior to the meeting in January

Record of Processing (RoP)

- A meeting has been set for October to introduce the tool and consider a plan for completion
- Jane to send Arrienne at DPE a list of third party suppliers before the meeting

Summary

The next meeting has been scheduled and an agreed time period for the third meeting this year to be in January.

Whilst the school have made progress regarding the physical security of the site, other areas need further improvement and time allocated to lower the data protection risks. Training and policies are a clear gap that must be addressed. Without training, the staff are unaware of their responsibilities and how to respond in certain situations. This lack of training is compounded by key policies not being in place to support when data protection queries do arise. These gaps will become apparent should the school have a significant data breach, such as a cyber-attack or a parent or employee makes a request for all their data.

The school should appoint a governor with data protection responsibilities and create a plan to address the current areas of concern.